

Tentative Rulings for August 6, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402921	HUNSBERGER VS BODO-PRICE	HEARING RE: MOTION FOR ATTORNEYS FEES BY STEVEN HUNSBERGER

Tentative Ruling: If the court finds a special motion to strike is “frivolous or is solely intended to cause unnecessary delay,” it is required to award costs and reasonable attorney fees “pursuant to Section 128.5” to a “plaintiff prevailing on the motion.” (CCP § 425.16(c); see *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131; *Olive Properties v. Coolwaters Enterprises, Inc.* (2015) 241 Cal.App.4th 1169, 1177 [sanctions affirmed where tenant’s anti-SLAPP motion “clearly without merit” and brought to stall landlord’s unlawful detainer action].)

The reference to CCP § 128.5 means a court “must use the procedures and apply the substantive standards of CCP § 128.5 in deciding whether to award fees under the anti-SLAPP statute.” (*Decker v. U.D. Registry, Inc.* (2003) 105 Cal.App.4th 1382, 1392 [superseded by statute on another ground]; *Moore v. Shaw* (2004) 116 Cal.App.4th 182, 199 & fn. 9.)

CCP § 128.5(b)(2) defines “frivolous” to mean “totally and completely without merit or for the sole purpose of harassing an opposing party.” When a motion has partial merit, it is not “totally and completely” without merit; nor can it be said that its “sole” purpose is to harass. (*Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 450.) The determination that an anti-SLAPP motion is “totally and completely without merit” requires a finding that “any reasonable attorney would agree such motion is totally devoid of merit.” (*Moore, supra*, 116 Cal.App.4th at 199.)

In support of the argument that the Anti-SLAPP motion was frivolous, Plaintiff argues Defendants’ position lacked any “tenable nexus” to protected activity, that the litigation privilege argument was devoid of merit, that Defendants “relied on false allegations of criminality,” that Defendants persisted with an appeal after the trial court’s “step-one denial,” and that Defendants raised the same issues on appeal as raised in the trial court. None of these conclusory arguments, nor Defendants’ Anti-SLAPP motion itself, support a finding that it was frivolous.

The fact that the motion proceeded only to the first prong of anti-SLAPP analysis does not mean the motion was frivolous. The argument that Defendants’ appealed without any “new arguments” likewise fails to contribute to a finding of frivolity. An appeal does not necessarily require new arguments or facts because Defendants were challenging the court’s ruling on the arguments made at the trial court level. Plaintiff cannot take the fact that Defendants’ motion and appeal were denied as support for a finding that the motion and appeal were so meritless that they were frivolous.

Ultimately, Defendants’ anti-SLAPP motion was not frivolous. The primary issue was whether the various instances of speech were made in connection with a public issue or an issue of public interest under CCP § 425.16(e)(3) or (e)(4). It was a close determination that required detailed review of the applicable case law. Both this court and the Court of Appeal in their decision weighed the context of the statements against various

cases, primarily *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475. As the Court of Appeal points out in its opinion when comparing this case to *Damon*, “While there are some similarities, there are also some key differences.” (Plaintiff’s Motion, Exhibit C at p. 12.) The Court of Appeal goes on to state, “This case requires us to analyze statements that **fall between** those at issue in *Damon* and *Du Charme*.” (*Id.* at p. 13.).

Because of this, it cannot be said that the Anti-SLAPP motion was totally and completely without merit or for the sole purpose of harassing Plaintiff.

Motion for Attorney’s Fees and Costs in Opposing Frivolous Anti-SLAPP Motion Filed by Defendants Cornelia Bodo-Price and Richard Gulyas DENIED.

Status Hearing set for October 5, 2026 is VACATED. A remittitur from the Court of Appeal, affirming the trial court, was filed on July 17, 2026.

Case Management Conference shall be scheduled for October 5, 2026. The parties are ordered to file with the Court ten days in advance of the continued CMC a declaration that should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. Updated Case Managements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503356	TOLLIVER VS CITY OF PALM SPRINGS	HEARING RE: MOTION FOR LEAVE TO AMEND COMPLAINT OF KAREN TOLLIVER BY KAREN TOLLIVER

Tentative Ruling:

No Opposition filed.

Motion for Leave to Amend Complaint by Karen Tolliver GRANTED.

The First Amended Complaint attached as Exhibit 1 to the Declaration of Alanna Blalock is deemed filed as of the date of this Order.

Motion to Quash Subpoena confirmed for August 14, 2026.

Case Management Conference and OSC confirmed for January 29, 2027.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503768	ONESOURCE DISTRIBUTORS, LLC VS INDIO PACIFIC ASSOCIATES, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO SET ASIDE ENTRY OF DEFAULT

Tentative Ruling: The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

Cross-Defendant Power4Ward, LLC was served via Registered Agent CorpNet, Inc-Juan Chavez, according to the proof of service filed with the court on 11.04.25. This service was done via personal service of Mr. Chavez on October 29, 2025. The Request for Entry of Default was granted by the court clerk on December 4, 2025, with mailing of notice of default on that same date. The motion to set aside entry of default was filed on June 9, 2026, past the 180 day deadline imposed by CCP 473.5 and six month deadline imposed by CCP 473(b). Additionally, Cross-Defendant Power4Ward in their motion does not challenge the validity of service upon the Registered Agent but places the blame on said agent for failing to forward the summons and cross-complaint to their current address. However, as pointed out by Cross-Complainants’ Opposition, Power4Ward, LLC attempted to file an answer with the court on December 8, 2025 that was rejected on December 9, 2025 as they were already defaulted.

Power4Ward fails to show lack of actual notice, considering no challenge to service of process, as well as their attempt to file an answer shortly after default was entered. This conduct also does not qualify as mistake, inadvertence, surprise or excusable neglect. Therefore, relief under CCP 473(b) and CCP 473.5 is not warranted. Relief under CCP 473(d) is inapplicable as this is not a situation where the default is void.

Power4Ward, LLC's Motion to Set Aside Entry of Default DENIED.

OSC re default judgment confirmed for October 29, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509590	ZONES VS BOSTON SCIENTIFIC CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT OF CHARLES ZONES

Tentative Ruling: No tentative ruling. Demurrer to be vacated or continued based upon Defendants Boston Scientific Corporation and Boston Scientific Cardiac Diagnostic Technologies, Inc. representation that a settlement has been reached with Plaintiff. Parties Zones and Boston Defendants to provide status of settlement and whether merits of demurrer need to be addressed on a future date.